



Appeal Decision

Site visit made on 24 July 2026

by Elaine Moulton BA (Hons) BPI MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15th September 2026

Appeal Ref: 6008848

Beech Grove, Brock Road, Great Eccleston, Lancashire PR3 0XD

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Peter Woodhouse against the decision of Wyre Borough Council.
 - The application Ref is 25/00762/FUL.
 - The development proposed is conversion of agricultural building to form a live/work unit.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. On 17 August 2026 a new National Planning Policy Framework (the Framework) was published. As this could be material to the outcome of this appeal, I consulted the parties and have taken the comments received into account in my decision.

Main Issues

3. The main issues are:
 - The effect of the proposed development on highway safety with particular regard to access visibility and parking provision; and
 - Whether the site is a suitable location for the proposed development having regard to local and national policy.

Reasons

Highway safety

4. The Council identified concerns relating to the absence of sufficient information in respect of the parking layout and the visibility splays achievable from the proposed access. In response, the appellant has submitted an amended plan with the appeal documents showing three parking spaces together with a Visibility Report (VR). The Council has confirmed that it is now satisfied that parking provision and internal site layout are acceptable, and I have no substantive evidence before me to reach a different conclusion.
5. The Council accepts the results of the speed survey contained within the VR, which indicate that vehicle speeds on Brock Road are substantially below the speed limit of 60 miles per hour (mph) that applies to this road. Consequently, the Council agrees with the appellant that visibility splays designed to meet the Design Manual for Roads and Bridges standards for a 60mph speed limit are not

necessary in this case. My observations during the site visit were broadly consistent with the speed survey results, and therefore I agree that visibility requirements should be based on actual vehicle speeds rather than the speed limit of the road.

6. The evidence indicates that a visibility splay measuring 2.4 metres (m) by 58m can be achieved to the southwest of the access. While this is 2m less than the splay that should be provided, the Council regards the shortfall as negligible and raises no objection in this regard. My site observations confirmed that adequate visibility is available in the southwest direction, and I therefore reach the same conclusion.
7. The parties agree that a visibility splay measuring 2.4m by 58m is required to the northeast of the access. The visibility splay that can be achieved within land under the appellant's control falls significantly short of that.
8. As I observed during my site visit, visibility for drivers exiting the proposed access is restricted by the boundary treatment of the adjoining property, which extends close to the carriageway edge. Overgrown vegetation along the front boundary of that property would further reduce visibility and may require the driver to edge into the carriageway to obtain adequate sight of vehicles approaching from the right. Accordingly, while the evidence suggests that Brock Road currently operates safely, the limited visibility available to vehicles leaving the site would be likely to increase the risk of conflict with other road users, to the detriment of highway safety.
9. The appellant has indicated that acceptable visibility to the northeast could be achieved through a binding legal agreement securing the provision and maintenance of the required splay over third party land. However, no such agreement is before me. In the absence of a mechanism to secure these measures, there is no certainty that the required visibility splays would be secured and maintained.
10. Although the proposed development would not give rise to severe residual cumulative impacts on the road network due to its limited scale, it would, for the reasons given above, have an unacceptable impact on highway safety. Accordingly, it would conflict with Framework Policy TR6.4.
11. Consequently, I conclude that, while adequate onsite parking could be provided, the development would have an unacceptable effect on highway safety due to the inadequacy of visibility at the access. As such it would conflict with Policy CDMP6 of the Wyre Local Plan (LP), adopted 26 January 2023, which, amongst other matters, seeks to ensure safe vehicular access would be provided. It would also conflict with the similar objectives of the Framework.

Suitable location

12. LP Policy SP1 establishes the settlement hierarchy for the borough. It directs new development to sites within the defined settlement boundaries. Outside defined settlements, where the appeal site is located, new development is strictly limited.
13. LP Policy SP4 identifies forms of development that may be acceptable outside defined settlement boundaries. These include the conversion of existing buildings, provided the proposal complies with the Core Development Management Policies and demonstrates that the specified order of priority has been considered. Within

that hierarchy, live/work units rank third, after employment uses appropriate to the rural area and tourism destination or local commercial uses. Residential use is the fifth and final priority, provided the proposal enhances its immediate setting.

14. Framework Policy S5.1c supports the re-use of existing buildings outside settlements in certain circumstances irrespective of their intended use. Although Policy SP4 is consistent with the Framework in many respects, its hierarchy of uses for the conversion of existing buildings imposes greater restrictions than those contained in Framework Policy S5.1c and is therefore inconsistent with national policy.
15. It is not disputed that the building is lawful in planning terms and of permanent and substantial construction, and the evidence before me provides no basis for reaching a different conclusion. Furthermore, no extensions are proposed. Accordingly, the proposed development satisfies the requirements of Framework Policy S5.1c.
16. Even if I were to agree with the Council that the appellant has failed to demonstrate that higher priority uses have been considered in accordance with LP Policy SP4.4, paragraph 2 of Annex A of the Framework indicates that only very limited weight should be afforded to any conflict with that requirement because of its inconsistency with national policy. Furthermore, Framework Policy S5.1c supports the re-use of the building irrespective of whether the proposed live/work unit includes a separate or substantial work element.
17. The Council has suggested that the residential element of the proposed use would be dominant and that the business floorspace could readily revert to residential use without further permission, due to the lack of physical or functional separation between the two elements. Nevertheless, I am required to determine the development as submitted, namely a live/work unit. Furthermore, any future conversion of the work floorspace to residential use could be controlled through the imposition of a condition should I be minded to allow the appeal.
18. LP Policy EP8 supports proposals that help diversify the rural economy, and/or expand existing businesses where specified criteria are met. The Council has not identified any harm arising from the scale or nature of the proposed business use in relation to the character of the area and, based on the evidence before me, I agree. Furthermore, the policy contains no requirement for an applicant to demonstrate a functional need for the business to be located in this rural area, nor does it require evidence that the proposed development would make a meaningful contribution to the rural economy. Whilst the proposal would consolidate rather than expand an existing business, it would nonetheless assist in diversifying the rural economy and therefore attracts a degree of support under LP Policy EP8.
19. Framework Policy TR3 indicates that development proposals should reflect certain principles so that development supports sustainable patterns of movement, enables good accessibility for different users and makes the most of existing and proposed transport infrastructure. Given the limited scale of both the residential and business elements of the proposed development, it is reasonable to conclude that it would not generate a significant amount of movement, even having regard to its rural location. Consequently, the proposed development is not a type to which Framework Policy TR3.1a is principally directed when seeking to locate

development in places that limit the need to travel, particularly by private car, and provide a genuine choice of transport modes.

20. The Council has referred to Framework policies TR1 and TR8. However, TR1 is directed towards plan-making policy and is therefore of limited relevance in this case. Policy TR8 relates to public rights of way which, amongst other things, requires opportunities to be taken to extend, link or improve the quality of existing routes. No such opportunity arises in this case and, given that the proposed development would not adversely affect an existing public right of way, it would not conflict with Framework Policy TR8.
21. Accordingly, I find that the appeal site is in a suitable location for the proposed development and it therefore accords with LP Policy SP2. Any conflict with LP Policy SP4 attracts limited weight due to its inconsistency with Framework Policy S5.1c, which supports the re-use of existing buildings outside settlements. The proposal also accords with LP policy EP8 as it would facilitate the diversification of the rural economy through the consolidation of an existing business within a countryside area. Furthermore, having regard to its limited scale, the proposed development would not be contrary to the Framework objectives of meeting development needs through sustainable patterns of development.

Other Matters

22. As set out above, the proposed development would not harm the landscape character of the area. Furthermore, there would be no harm to the living conditions of nearby residents. However, these are neutral factors that would not weigh in favour of, or against, the proposed development.
23. The appellant states that no opportunity was given to respond to the comments of the Highway Authority. However, notwithstanding the provisions of Framework Policy DM3.1a and e, consideration of the Council's handling of the planning application falls outside the scope of this decision.

Planning Balance and Conclusion

24. For the reasons set out above, the proposal is one of the forms of development which Framework Policy S5.1 states should be approved outside settlements unless the benefits of doing so would be substantially outweighed by any adverse effect when assessed against the national decision-making policies in the Framework.
25. Policy S5.2 identifies the circumstances in which the benefits of development are likely to be substantially outweighed by adverse effects. These include, but are not restricted to, situations where the development proposal would fail to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances.
26. The Council accepts that the proposal would secure the re-use and long-term preservation of an existing building that has some heritage value. It would also support a small-scale rural business. These are benefits to which I attribute moderate weight in favour of the proposed development. The proposed live/work unit would also reduce the need to commute. However, this benefit is tempered by the likelihood that occupants would remain reliant on the private car to meet their day-to-day needs. Therefore, this is a benefit to which I attach limited weight.

27. The proposal would, however, fail to comply with one of the national decision-making policies, namely Policy TR6.4. This policy indicates that proposed development should be refused where it would have an unacceptable effect on highway safety. For the reasons given above, I have found that this would be the case.
28. As such, the material considerations do not indicate that in this case the appeal should be decided other than in accordance with the development plan. The proposed development conflicts with the development plan as a safe vehicular access would not be provided. Therefore, for the reasons given above the appeal should be dismissed.

Elaine Moulton

INSPECTOR